IN THE CIRCUIT COURT HELD AT ACHIMOTA, ACCRA ON WEDNESDAY, THE 2ND DAY OF APRIL, 2025 BEFORE HER HONOUR AKOSUA ANOKYEWAA ADJEPONG (MRS.), CIRCUIT COURT JUDGE

CASE NO.: D2/064/24

THE REPUBLIC

VRS

1. **NICKY ISABELLA A.K.A. BELLA**
2. **NELLY AT LARGE**

FIRST ACCUSED PERSON PRESENT

SECOND ACCUSED PERSON AT LARGE

A.S.P. ISAAC BABAYI FOR THE REPUBLIC PRESENT

SYDNEY ANTONIO, ESQ. FOR THE FIRST ACCUSED PERSON PRESENT

JUDGMENT

THE CHARGES

The 1st accused person herein was arraigned before this court whilst the 2nd accused person has never appeared before this court, as she is reportedly at large. The trial was therefore in respect of the 1st accused person.

The 1st accused person was charged with the offence of Conspiracy to commit crime to wit; human trafficking contrary to ***section 23(1) of the Criminal Offences Act, 1960 (Act 29)*** as read with ***sections 2(1) & (2) of the Human Trafficking Act, 2005 (Act 694) as amended by section 1(1) of the Human Trafficking Act, 2009 (Act 784)*** as well as two counts of the substantive offence of Human Trafficking contrary to ***section 2(1) & (2) of the Human Trafficking Act, 2005 (Act 694) as amended by section 1(1) of the Human Trafficking Act, 2009 (Act 784)*** on a charge sheet filed on 26th June 2024.

THE PLEA

The 1st accused person pleaded not guilty to all the three counts after the charges had been read to her. The 1st accused person having pleaded not guilty to the charges, the prosecution assumed the burden to prove her guilt beyond reasonable doubt.

FACTS

The brief facts of the case as presented by the prosecution are that the complainants in this case are Grace Ebeagbor a.k.a Mimi, age 23 and Kikelomo John a.k.a Clara, age 22 and the accused persons are Nicky Isabella a.k.a Bella (A1), age 22, a hairdresser and Nelly (A2) at large all Nigerians living in Ghana at Ability Square, Adjiringanor. On 18/06/2024 the complainants reported at the Anti Human Trafficking Unit CID

Headquarters, Accra with a complaint that Nicky Isabella a.k.a Bella and Nelly deceived, lured, recruited and transported them from Nigeria to Ghana in the month of May 2024, under the pretext of securing them jobs in a supermarket but ended up forcing them into prostitution against their will and the proceeds collected from them. Upon receipt of the complaint, the victims were interviewed and later gave their statements to Police. Preliminary investigations revealed that A1 with an intent to exploit the complainants made them swear on a Bible and later cut pieces of their hair which she threatened to use against them should they refuse to work as prostitutes or run away with her money whiles serving her. They were to work as prostitutes for a period of three to four months depending on the amount of money, they make daily before they could gain their freedom. On 20/06/2024, a team of personnel led by the Unit Station Officer together with the two complainants went to Ability Square Adjiringanor and arrested A1. A1 was interrogated, during which she informed Police that she knows both complainants and admitted having transported them from Nigeria to Ghana and engaging them into prostitution. A search conducted in A1's room at Ausbuild apartment, revealed a blue book with an inscription 'Executive Shorthand Notebook' which contains recorded proceeds and human hair were retrieved by Police. During investigation, A1 admitted forcing the victims into prostitution for over a month and also collecting proceeds from the prostitution work. After investigations, accused persons were charged with the offences as stated on the charge sheet and arranged before this honourable court.

To discharge their legal burden, the prosecution called two witnesses including the investigator in support of their case; and tendered the caution and charge statements of the 1st accused person in evidence.

EVIDENCE OF THE PROSECUTION WITNESSES

PW1 who is one of the victims in this case testified that her name is Ebeaghor Grace a.k.a Mimi. That she knows the 1st accused person, way back in Nigeria, that both of them live in the same neighbourhood in Nigeria at Makoko. She continued that in the early month of May 2024, the 1st accused person Nicky called her on WhatsApp audio and told her that the 2nd accused person has a supermarket shop in Ghana and therefore needed sales girls to work for her. That after the audio call herself, Kekilomo and Adesuawa agreed to come to Ghana for the supermarket job. That the 1st accused person directed them to her agent by name Oga Soni at Mile 2 in Nigeria to arrange with him for the day they will all agree to come to Ghana. That at about 8:00am of same date after they sealed their plans of coming to Ghana, they went to the agent Oga Soni with their luggage where he put them in a boat to Benin. That at about 3:00pm of same date they finally reached Benin where they had been transferred to Aflao bus by a certain man who they do not know; and they finally reached Aflao at about 9:00pm where they spent the night there.

PW1 further testified that at about 6:00am the following day the same agent who had received them at Aflao led them to Accra station where they boarded an Accra bus and finally reached Tetteh Ouarshie roundabout in Accra at about 12:00noon. That at Tetteh Quarshie roundabout, the driver called the 1st accused person, Isabella and informed her that they had arrived in Accra. That thirty minutes later, the 1st accused person appeared at the spot and took the three of them to her apartment at Ausbuild at Adjiringanor. That on reaching the 1st accused person's house, the three of them were asked to rest and start their shop keeping job the next day.

According to PW1, at 6:00am the following day, the 1st accused person, Isabella introduced them to the 2nd accused, Nelly as the girls she (Isabella) was talking about. That at 6:00pm of their arrival in Ghana, the 2nd accused person made them know that it is what it is, that they have come to do prostitution. That after they were made to know

about this and considering how far they came there was no alternative for them than to start with the prostitution work.

PW1 continued that before they started with this prostitution work, they were made to swear on a Bible where in the process their pubic hair was cut, and they were told that they will be used for juju in the event they run away resulting to them going mad. That both of them worked for almost two months and they got an average sale from GHS150.00 to GHS600.00 per every night which they always give to the 2nd accused person. That she decided to talk to some members of an affiliated church by name Redeem Christian God, a Nigerian branch church to assist her go back to Nigeria. That after she had contact with the pastor of the church and complained to him, he brought them to police headquarters where they lodged a complaint and the 1st accused person was arrested.

PW2, the investigator herein No. 8576 Detective Corporal Sakinatu Salifu also testified that she is stationed at the Anti-Human Trafficking Unit of CID Headquarters. That on 1st June 2024 a case of human trafficking was reported at the Unit by victims Grace a.k.a Mimi and Kikelomo John a.k.a Clara all Nigerians and same was assigned to her for investigations. That she took statements from both victims and later paraded them before her Unit Commander in the person of DSP/Mr. William Ayariga for further directives. That the Unit Commander interviewed both victims and had instructed her to organize men for the arrest of the accused.

PW2 continued that on 20th June 2024 a team of investigators from the Unit and the Surveillance Unit of the CID Headquarters together with the victims reported and left for Nmai Dzorn around East Legon for enquires. That the victims led police to an apartment called Ability Square and pointed out Ausbuild apartment to police as where accused

persons lodged. That the 1st accused person Nicky a.k.a Bella was seen in her room and was subsequently arrested and brought to the Unit whiles, the 2nd accused person Nelly was not met. According to PW2, further search was conducted in the room in the presence of accused Nicky where a blue book captioned 'Executive Shorthand Notebook' which contained the recorded proceeds of the prostitution of victims Grace Ebeaghor and Kikelomo and a small piece of hair belonging to the victims were seen in the room.

That the accused person together with the exhibits were brought to the Unit and was later interrogated by the Unit Commander; and she admitted having transported the victims from Nigeria to Ghana to work as prostitutes. That investigation cautioned statement was obtained from the accused Nicky Isabella. PW2 tendered same in evidence as exhibit 'A'.

According to PW2, investigation revealed that accused persons Nicky Isabella and Nelly at large had arranged with some agents in Nigeria and transported the two victims into Ghana to work as prostitutes for them. That in order for the accused persons to put fear in the victims, cut their hair and threatened to use same and do juju on them in case they fail to render an account to them, and would make them go mad. That charge statement was obtained from accused Nicky Isabella a.k.a Bella. Same was tendered in evidence as exhibit 'B'.

Thereafter, the prosecution closed its case.

After the close of the case of the prosecution, the Court examined the evidence adduced by the prosecution witnesses to make a determination whether a prima facie case had been made out by the prosecution to warrant the 1st accused person to open her defence. The Court subsequently gave a ruling that a prima facie case had been made out against the 1st accused person and her duty was to raise a reasonable doubt in the case of the prosecution. In view of that the 1st accused person was called upon to enter into her

defence, after the options available to her were explained to her. The Court also reminded the 1st accused person of the charges against her.

EVIDENCE OF THE FIRST ACCUSED PERSON

In her defence, the 1st accused person testified in open Court that her name is Isabella Nicky. That she lives at East Legon and is a hairdresser. That she knows the prosecution witnesses. She further testified that she was not the one that brought Mimi and Clara to Ghana. That they are her friends in Nigeria.

According to the 1st accused person, Adesuawa had a chat with her that she wants to come to Ghana so she told her that she is still under Nelly so she cannot bring her to Ghana. That she asked for Nelly's number which she gave her. That the next time she saw Mimi, Clara and Adesuawa in Ghana so all of them were staying together as she was serving Nelly. That Nelly bought clothes for them to wear and they were okay with it. That she was sick at that time so she was not going out with them. That she told Nelly she wanted to go back to Nigeria and Adesuawa was also pregnant so Nelly decided to take her back to Nigeria because of her pregnancy. So, Nelly asked Mimi and Clara if they want to go back to Nigeria and they said they will not go because they have babies in Nigeria and have to work to take care of them. That Mimi and Clara went out for work and did not come back for some days; and when they came back after two days Nelly told them that she does not trust them because they will run away with her money so they were pleading with Nelly and said they can swear so Nelly should trust them and Nelly made them swear on Bible. That Nelly took Adesuawa to Nigeria because of her pregnancy and asked her to work for her transport; and before she left, she took Mimi and Clara to her friends Gold and Pretty. That one week after Nelly left, Gold and Pretty brought Mimi and Clara back to her and asked her to tell Nelly that they cannot stay with Mimi and Clara because they are not serious for work and they only smoke and drink.

That she called Nelly to tell her and she said they should all work for their transport and come back to Nigeria. That is when Mimi and Clara went to church to report Nelly to a pastor, and the pastor also went to report her (the 1st accused person) at the police station. That when the police came, they said they were looking for her madam and she said it is Nelly and she has travelled. That they asked her if she knows Mimi and Clara and she said yes and they said she should come for her statement to be taken.

The accused person called two witnesses as DW1 and DW2.

DW1 gave his name as Endurance IK, that he lives at New Town and sells phone covers and accessories. He testified that he knows the 1st accused person from village as she is from his state; but does not know the victims and the prosecution witnesses. DW1 further testified that the 1st accused person is innocent. That when she came to Ghana, he met her at Circle and asked her what she came to do in Ghana. That she told him that it is because of hairdressing that she came to Ghana; and her madam told her to go and practice prostitution. That he wanted to help the 1st accused person with money for her to go back to Nigeria but he could not, and later learnt of her arrest.

DW2, Venia Tobe also testified that she stays in Nigeria and knows the 1st accused person as her friend in Nigeria, that they are both hairdressers. According to DW2 she knows Nelly the 2nd accused person; and that it is through 2nd accused person that she also knows the victims. That the 2nd accused person brought both her and 1st accused person to Ghana and told them that she is doing hairdressing in Ghana so they should follow her to Ghana. That when they came to Ghana, they saw that she is into prostitution and not hairdressing. That four days' time the 2nd accused person brought those three girls. DW2 further testified that she could not practice the prostitution so she ran away in the night after the 2nd accused person had threatened her to give her GHS9,000.00. That she called her mother who sent her money for transport and went back to Nigeria. That she did not

hear about 1st accused person again; and after 8 months' time, the 1st accused person called her mother that the girls that Nelly brought said she brought them so she should come and stand for her since she was there when Nelly brought them.

The 1st accused person closed her defence thereafter.

LEGAL ISSUES

The legal issues to be determined are:

1. *Whether or not the 1st accused person herein did agree with Nelly at large to act together with common purpose to commit crime to wit; human trafficking.*
2. *Whether or not the 1st accused person herein did recruit and transport victim Grace Ebeagbor a.k.a Mimi from Nigeria to Ghana under the pretext of securing her a job but ended up forcing her into prostitution.*
3. *Whether or not the 1st accused person herein did recruit and transport victim Kikelomo John a.k.a Clara from Nigeria to Ghana under the pretext of securing her a job but ended up forcing her into prostitution.*

BURDEN AND STANDARD OF PROOF

The basic rule in all criminal proceedings is that the burden of establishing the guilt of the accused person is on the prosecution and the standard of proof required by the prosecution should be proof beyond reasonable doubt as provided in the ***Evidence Act, 1975 (NRCD 323)***, per ***sections 11(2), 13(1) and 15.***

Under ***Article 19(2)(c) of the 1992 Constitution***, a person charged with a criminal offence is presumed innocent until proven guilty or has pleaded guilty.

In the case of ***Gligah & Attiso v. The Republic [2010] SCGLR 870***, the Supreme Court held in its holding 1 that:

> *"Under article 19 (2) (c) of the 1992 constitution, everyone charged with a criminal offence was presumed innocent until the contrary is proved. In other words, whenever an accused person was arraigned before any court in any criminal trial, it was the duty of the prosecution to prove the essential ingredients of the offence charged against the accused person beyond reasonable doubt. The burden of proof was therefore on the prosecution and it was only after a prima facie case had been established by the prosecution that the accused person would be called upon to give his side of the story."*

The burden on the accused person, when called upon to enter his or her defence, is to raise a reasonable doubt in the case of the prosecution. The standard of proof for the defence is proof on a balance of probabilities.

In the case of ***Osae v. The Republic [1980] GLR 446,*** the Court held that:

> *"although it was settled law that where the law cast the onus of proof on the accused, the burden on him was lighter than on the prosecutor, and the standard of proof required was the balance of probability, if at any time of the trial, the accused voluntarily assumed the onus of proving his defence or some facts as happened in this case, the standard he had to discharge was on a balance of probabilities."*

Significantly, whereas the prosecution carries that burden to prove the guilt of the accused person beyond reasonable doubt as per ***sections 11(2) and 13(1) of the Evidence Act, 1975 (NRCD 323)***, there is no such burden on the accused person to prove her innocence. At best she can only raise a doubt in the case of the prosecution. But the doubt must be real and not fanciful.

ANALYSIS

The general rule is that only a citizen of Ghana is subject to the criminal jurisdiction of the Ghanaian Courts. However, ***section 56 of the Courts Act, 1993 (Act 459)*** provides that a person who is not a citizen of Ghana may be subject to the criminal jurisdiction of the courts of Ghana where he or she commits any of a number of offences. Of interest are those of the offences listed in the section which bear directly on human trafficking.

These are: slave trade or trafficking in slaves; trafficking in women and children; falsification or counterfeiting or making use of false copies or counterfeits of any official seal of Ghana or any currency, instrument of credit, stamp, passport or public document issued by the Republic or under its authority; genocide; any offence against the property of the Republic; unlawful traffic in narcotics; and any other offence which is authorised or required by a convention or treaty to which the Republic is a signatory to be prosecuted and punished in Ghana wherever the offence was committed.

Flowing from the above authority this court is competent to try a person who is not a citizen of Ghana.

The 1st accused person has been charged with the offence of conspiracy to commit Human Trafficking, and two counts of human trafficking contrary to *section 23(1) of the Criminal*

Offences Act, 1960 (Act 29) and *sections 2(1) & (2) of the Human Trafficking Act, 2005 (Act 694) as amended by section 1(1) of the Human Trafficking Act, 2009 (Act 784).*

Section 23(1) of Act 29 on conspiracy provides that:

> *"Where two or more persons agree to act together with a common purpose for or in committing or abetting a criminal offence, whether with or without a previous concert or deliberation, each of them commits a conspiracy to commit or abet the criminal offence."*

The essential ingredients of the offence which the prosecution must prove to succeed on the charge of Conspiracy as stated in the case of ***Republic v. Eugene Baffoe Bonnie (unreported); Suit No. CR/904/2017 delivered on 12th May, 2020***, per Kyei Baffour JA sitting as an additional High Court Judge are as follows:

i. That there were at least two or more persons.
ii. That there was an agreement to act together.
iii. That the sole purpose of the agreement to act together was for a criminal enterprise.

In the case of ***Faisal Mohammed Akilu v. The Republic [2017-2018] SCGLR 444*** the Supreme Court per Yaw Appau JSC stated on Conspiracy as follows;

> *"Conspiracy could therefore be inferred from the mere act of having taken part in the crime where the crime was actually committed. Where the conspiracy charge is hinged on an alleged acting together or in concert, the prosecution is tasked with the duty to prove or establish the role each of the alleged conspirators played in accomplishing the crime"*

Section 2 of Act 694 as amended by Act 784 on prohibition of trafficking provides as follows:

"(1) A person shall not traffic another person within the meaning of section 1 or act as an intermediary for the trafficking of a person.

(2) A person who contravenes subsection (1) commits an offence and is liable on summary conviction to imprisonment for a term of not less than five years."

The meaning of human trafficking has been provided under ***section 1 subsections 1 and 2 of Act 694 as amended by Act 784*** as follows:

"(1) Human trafficking means the recruitment, transportation, transfer, harbouring, trading or receipt of persons within and across national borders by
(a) the use of threats, force or other forms of coercion, abduction, fraud, deception, the abuse of power or exploitation of vulnerability, or
(b) giving or receiving payments and benefits to achieve consent.
(2) Exploitation shall include at the minimum, induced prostitution and other forms of sexual exploitation, forced labour or services, slavery or practices similar to slavery, servitude or the removal of organs."

From the above, the prosecution has the onus to prove that the 1st accused person trafficked the victims herein or acted as an intermediary and obtained the interest and consent of the victims herein through threats, force, deception, coercion, abuse of power or exploitation of the victim's vulnerability and thus recruited, transported and transferred the victims from Nigeria to Ghana to come and practice prostitution.
From on the evidence on record; that is, the evidence of one of the victims (PW1), the investigator (PW2) as well as the evidence of the 1st accused person and her witnesses, the complainants in this case are the victims herein Grace Ebeagbor a.k.a Mimi and Kikelomo John a.k.a. Clara who are Nigerians.

According to PW1 she knows the 1st accused person, way back in Nigeria, as both of them live in the same neighbourhood in Nigeria. That she together with the other victim and complainant and one Adesuawa agreed to come to Ghana after the 1st accused person called her on WhatsApp audio and told her that the 2nd accused person has a supermarket shop in Ghana and therefore needed sales girls to work for her, so they came to Ghana for the supermarket job. PW1 also testified that it was the 1st accused person who directed them to her agent by name Oga Soni at Mile 2 in Nigeria to arrange with him for the day they will all agree to come to Ghana. That when they eventually arrived in Ghana, it was the 1st accused person who went to take the three of them to her apartment at Ausbuild at Adjiringanor; and later introduced them to the 2nd accused, Nelly as the girls she (Isabella) was talking about. That the 2nd accused person made them aware that they have come to do prostitution; and considering how far they had come there was no alternative for them than to start with the prostitution work. According to PW1 before they started with this prostitution work, they were made to swear on a Bible where in the process their pubic hair was cut, and they were told that they will be used for juju in the event they run away resulting to them going mad. That both of them being her and the other complainant worked for almost two months and they got an average sale from GHS150.00 to GHS600.00 per every night which they always gave to the 2nd accused person.

The 1st accused person denied these assertions by PW1, however PW1 vehemently maintained under cross examination that the 1st accused person spoke to her and deceived her to come to Ghana for a supermarket job but rather forced her and the other complainant into prostitution when they arrived in Ghana.

Under cross examination by the 1st accused person's lawyer, PW1 maintained her position that she came to Ghana through the 1st accused person; and that both the 1st accused person and the 2nd accused person were living together when she came to Ghana

and also the 1st accused person was the one collecting the money from her. PW1 also testified under cross examination that all her communication about coming to Ghana was through the 1st accused person.

Again, under cross PW1 maintained her evidence that the 1st accused person is the one that told her that she was coming to Ghana to work in the supermarket when she was in Nigeria and when she came to Ghana the 1st accused person introduced her to the 2nd accused person. PW1 further testified under cross examination that when they asked her if she wanted to go back to Nigeria, she said yes but she did not have money for transport and they said she should call her parents to send her GHS1,500.00 to go back but she did not because her parents do not have that money so she had to stay and follow their instructions.

From the entire evidence on record I find that the 1st accused person was working under the 2nd accused person as a prostitute and decided to recruit more girls to also come and work for the 2nd accused person, thereby from the essential elements of the offence of human trafficking, the 1st accused person actually committed the said offence by recruiting the victims for them to be engaged in prostitution when she had told PW1 that they were coming to work in a supermarket in Ghana.

PW2 also testified that the complainants herein being the victims led police to an apartment called Ability Square and pointed out Ausbuild apartment to police as where accused persons lodged. That the 1st accused person was arrested and brought to the Unit but the 2nd accused person was not met. That a search was conducted in the room of the 1st accused person in her presence revealed a blue book captioned 'Executive Shorthand Notebook' which contained the recorded proceeds of the prostitution of victims Grace Ebeaghor and Kikelomo and small pieces of hair belonging to the victims were seen in the room. That upon interrogation the 1st accused person admitted having transported the victims from Nigeria to Ghana to work as prostitutes.

From the evidence adduced by PW2, investigation revealed that accused persons Nicky Isabella and Nelly at large had arranged with some agents in Nigeria and transported the two victims to Ghana to work as prostitutes for them. That in order for the accused persons to put fear in the victims, cut their hair and threatened to use same for juju on them in case they fail to render an account to them, and would make them go mad.

Exhibits 'A' and 'B' being the caution and charge statements of the 1st accused person were tendered in evidence, without objection from the 1st accused person's lawyer who was present in court when the said exhibits were tendered.

A careful examination of exhibits 'A' and 'B' indicates that same were taken in compliance with ***section 120 of the Evidence Act, 1975 (NRCD 323)***. There was an independent witness in the person of Amankwah Keady in exhibit 'A' and another independent witness in the person of Owusuaa Osei Acheampong in exhibit 'B'. To an extent exhibits 'A' and 'B' have some confession statements made by the 1st accused person to the effect that she facilitated the victims coming to Ghana to engage in prostitution.

For the avoidance of doubt, I reproduce the relevant part of exhibit 'A' as follows:

> *"... I talked to my friends by name Pretty and Gold to pay their transportation that is why when they came on the 10th of May 2024, I gave Mimi aka Grace to Gold and Clara aka Kikelomo to Pretty aka Felicia. I also cut their hair to scare them in case they did not pay the transportation I used to bring them to Ghana. Mimi aka Grace and Clara aka Kikelomo came around May and have been working and given the money to their madam which is Pretty and Gold. Last week Gold returned Mimi a.k.a. Grace to me because she did not like her behaviour and I wrote the money she has worked for her in a book. For Clara a.k.a Kikelomo she was given the money to her madam which is Pretty and I snapped it on my phone."*

Exhibit 'B' has similar contents as in exhibit 'A' and the above statements made by the 1st accused person in exhibits 'A' and 'B' support the case of the prosecution to the effect that the 1st accused person transported the victims from Nigeria to Ghana to be engaged in prostitution, then transferred them to the said Gold and Pretty for them to practice prostitution and also threatened them not to run away without paying the transportation or they would go mad.

Akamba JSC in the case of ***Ekow Russel v. The Republic [2016] 102 GMJ 124 SC***, stated as follows:

> *"... A confession is an acknowledgment in express words, by the accused in a criminal charge, of the truth of the main fact charged or of some essential part of it.* ***By its nature, such statement if voluntarily given by an accused person himself, offers the most reliable piece of evidence upon which to convict the accused****. It is for this reason that safeguards have been put in place to ensure that what is given as a confession is voluntary and of the accused person's own free will without fear, intimidation, coercion, promises or favours ..."* (Emphasis mine)

Given that the said confession statements were obtained from the 1st accused person immediately she was arrested when issues concerning the instant case were fresh in her mind and also in the presence of independent witnesses, I find the 1st accused person's denial of same under cross examination as an afterthought.

In the case of ***Francis Atini v The Republic Criminal Appeal No. H2/17/2019 dated 23rd December 2020 CA***, the Court of Appeal stated thus:

"The evidence in the box was in conflict with the caution statement by the appellant. The evidence can best be described as an afterthought. It can be deduced that; the appellant told the truth when the matter was still fresh in his mind and had no time to manipulate same. His later evidence is an afterthought, and self-serving. It carries no weight and same is rejected. He gave a detailed account of how he took the tyres and the batteries and sold same without the consent of the complainant who was the owner of the items."

This court will accordingly reject the evidence of the 1st accused person offered under cross examination in denial of the confession she made; after she earlier admitted under cross examination that both statements she gave to the police were statements she submitted voluntarily without any influence whatsoever. This is because if the statements were obtained from the 1st accused person involuntary, the 1st accused person and her lawyer who was present in court would have raised objection to same when the investigator sought to tender them, as same were earlier served on them by way of disclosure long before PW2 offered them in evidence.

Moreover, the investigator who tendered these confession statements was available in Court as PW2 who was cross examined by counsel for the 1st accused person. PW2 under cross examination was not challenged that the caution and charge statements she obtained from the 1st accused person were not taken voluntary.

From the evidence on record, I find that the confessions made by the 1st accused person in exhibit 'A' and 'B' being part of the prosecution's case support the case of the prosecution on the elements of the offence of human trafficking which the 1st accused person has been charged with. Exhibits 'A' and 'B' also confirm the assertions made by PW1 in her evidence that it is the 1st accused person who transported them to Ghana and threatened them not to run away after they realized they were coming to practice prostitution.

Given the circumstances of the victims who decided to seek greener pastures outside Nigeria, I find that they were exploited by the 1st accused person through their vulnerability. Thus, the 1st accused person obtained the interest and consent of the victims to come to Ghana for job through the exploitation of their vulnerability and as a result, recruited them for her friends and made them engage in prostitution. Moreover, PW1 denied that she agreed to engage in prostitution as she testified under cross examination that, the 1st accused person is the one that told her that she was coming to work in the supermarket when she was in Nigeria and when she came to Ghana, she introduced her to the 2nd accused person for the purposes of prostitution.
Considering that the 1st accused person has also testified that she was brought to Ghana by the 2nd accused person to engage in prostitution and was working for the 2nd accused person, I find the testimony of PW1 as credible and attach high probative value to same.

From the entire evidence on record, the prosecution has been able to establish the elements of the offences the 1st accused person has been charged with. This is because from the evidence on record, it is not in doubt that the 1st accused person who came to Ghana through the 2nd accused person and lived with the 2nd accused person ended up practicing prostitution and decided to help the 2nd accused person get more girls for that job therefore convinced the victims herein to come to Ghana to work in a supermarket when she knew that they were coming to work as prostitutes as the 2nd accused person made her do. From the evidence led by the prosecution witnesses, the 1st accused person assisted the 2nd accused person by recruiting the victims for the 2nd accused person as she played a role in getting the victims to come to Ghana to engage in prostitution.

From the evidence of PW1, so far as she is aware, she did not know the 2nd accused person as it is the 1st accused person who spoke to her on WhatsApp call and convinced her and the other victim to come to Ghana only for them to be forced into prostitution by the 1st

accused person. Accordingly, I find that the 1st accused person conspired with the 2nd accused person who is at large to recruit the victims.

From the evidence on record the 1st accused person actually acted as an intermediary for the trafficking of the said victims after she herself was recruited into prostitution by the 2nd accused person who is currently at large. The evidence on record indicates that the 1st accused person deceived the victims as to the nature of job they were coming to do in Ghana. From the evidence of PW1, even though she wanted to return to Nigeria, when she found out the job she was to do was rather prostitution instead of working in the supermarket as a sales girl, she could not go back to Nigeria because she did not have any money on her to use as transportation. The 1st accused person was able to recruit the victims because of their vulnerability as they sought for greener pastures elsewhere other than Nigeria. Therefore, the 1st accused person exploited the vulnerability of the victims.

The entire evidence on record therefore establishes that the 1st accused person facilitated or acted as an intermediary for the victims to be trafficked to Ghana to be engaged in prostitution as she herself admitted in her caution statement that she asked her friends to pay for the transportation for the victims and when the victims arrived, she gave them to her friends for them to work as prostitutes and pay the proceeds to them to offset the transportation they paid.

From the evidence on record, I find that the 1st accused person facilitated the transportation of the victims she mentioned in exhibits 'A' and 'B' to Ghana and also received the said victims and sent them to the apartment she lives and practices prostitution; and subsequently transferred them to the said Gold and Pretty for the purposes of the practice of prostitution which the victims were made to engage in, by exploiting their vulnerability as a result of their eagerness to seek greener pastures outside Nigeria. I further find that the said exploitation included the induced prostitution

which the 1st accused person and her friends benefited from the proceeds of same as she admitted that the victims worked and gave the proceeds to their madam; whilst she recorded the money they have worked for her in a book.

From the evidence on record, the 1st accused person might have been a victim of the 2nd accused person as she and her witnesses told the court but it does not nullify the evidence on record that she actually acted as an intermediary and recruited the victims in the instant case from Nigeria and played a role for them to be transported to Ghana, and had them transferred to her friends for the purposes of the victims coming to practice prostitution in Ghana.

From the evidence on record, there is sufficient evidence by the prosecution to establish that the 1st accused person acted as an intermediary for the trafficking of the victims she mentioned in exhibits 'A' and 'B' by recruiting, facilitating in their transportation and then transferring the said victims after she received them when they arrived in Ghana from Nigeria for the purpose of prostitution by the exploitation of their vulnerability; and further induced the victims to practice prostitution where the 1st accused and her friends benefited from the proceeds of the prostitution. Consequently, I find that the 1st accused person committed the offence of conspiracy to commit human trafficking as well as the two substantive offences of human trafficking.

In the case of ***Commissioner of Police v. Isaac Antwi*** **[1961] GLR 408-412,** it was held that the accused person is not required to prove anything. All that is required of him is to raise a reasonable doubt as to his guilt. This is further emphasized by ***sections 11(3) and 13(2) of the Evidence Act, 1975 (NRCD 323).***

The 1st accused person gave evidence and further called two witnesses to testify in her favour but their testimonies could not raise a reasonable doubt as to the guilt of the 1st accused person because they did not live with the 1st accused and so did not know exactly what she was up to. Also, there is satisfactory evidence on record to sustain the charges against the 1st accused person.

I support my decision with the dictum of Denning J. (as he then was) in the case of ***Miller v. Minister of Pensions*** **[1947] 2 All E.R. 372 at p. 373** where he said:

> *"Proof beyond reasonable doubt does not mean proof beyond the shadow of a doubt. The law would fail to protect the community if it admitted fanciful possibilities to deflect the course of justice. If the evidence is so strong against a man as to leave only a remote possibility in his favour which can be dismissed with the sentence 'of course it is possible, but not in the least probable,' the case is proved beyond reasonable doubt, but nothing short of that will suffice."*

CONCLUSION

On the totality of the evidence on record, I find that the prosecution proved their case against the 1st accused person beyond reasonable doubt. For the foregoing reasons, I pronounce the 1st accused person herein guilty of the offence of conspiracy to commit human trafficking as well as guilty on the two counts of human trafficking.

Having considered that the 1st accused person is a woman and relying on ***section 313A (1) of the Criminal and Other Offences (Procedure) Act, 1960 (Act 30)***, I do hereby order that the convicted (accused) person be tested for pregnancy before sentence is passed on her. The sentence is therefore deferred until the Court is furnished with the results of the

said pregnancy test. Accordingly, the convict shall be remanded in police custody for the police to ensure that the pregnancy test is conducted.

4th April 2025

FIRST ACCUSED PERSON/CONVICT PRESENT
SECOND ACCUSED PERSON AT LARGE

A.S.P. ISAAC BABAYI FOR THE REPUBLIC PRESENT

SYDNEY ANTONIO, ESQ. FOR THE FIRST ACCUSED PERSON/CONVICT ABSENT

Prosecutor: This Court directed prosecution to conduct pregnancy test on the accused person. That has been carried out and the report subsequently filed. We are ready for today's business.

Court: The Court has been furnished with the results pregnancy test conducted on the convict herein and it indicates that the convict is currently not pregnant as the pregnancy test dated 2nd April 2025 is negative. Accordingly, the court shall proceed to give its sentence but before then, will take the plea in mitigation of the convict, if any.

<u>Pre-Sentencing hearing</u>

Court: Do you have any plea in mitigation before sentence is passed, 1st accused person/convict?

Convict: All I have to say is for the court to have mercy on me. I did not do anything. I do not know anything about this.

Court: Is the convict known?

Prosecutor: No, my lady.

SENTENCING

In sentencing the 1st accused person/convict herein, the court takes into consideration her plea in mitigation and the fact that she is a first-time offender as well as her youthful age. In accordance with ***Article 14(6) of the 1992 Constitution***, time spent in custody by the 1st accused person/convict pending trial and sentence is considered by the court. The court has further considered the fact that the convict herein is not currently pregnant. Additionally, the court relies on ***section 2(2) of the Human Trafficking Act as amended***.

In view of the above and further considering the circumstances of the instant case, the convict herein is hereby sentenced to serve a term of imprisonment of five (5) years in hard labour on each count. However, the sentences on all the three counts shall run concurrently.

[SGD.]

H/H AKOSUA A. ADJEPONG (MRS)

(CIRCUIT COURT JUDGE)